

SOLICITATION, OFFER AND AWARD			1. This Contract Is A Rated Order Under DPAS (15 CFR 700) ➡		Rating DOA7	Page 1	of 47	Pages
2. Contract Number		3. Solicitation Number SPRBL1-26-R-0007		4. Type of Solicitation ☐ Sealed Bid (IFB) ☒ Negotiated (RFP)		5. Date Issued 2026MAR24		6. Requisition/Purchase Number SEE SCHEDULE
7. Issued By DLA LAND AT ABERDEEN DSCC-ZLAA 6565 SURVEILLANCE LOOP, RM C4 126B APG, MD 21005-1846			Code SPRBL1	8. Address Offer To (If Other Than Item 7)				

NOTE: In sealed bid solicitations 'offer' and 'offeror' mean 'bid' and 'bidder'.

SOLICITATION

9. Sealed offers in original and _____ copies for furnishing the supplies or services in the Schedule will be received at the place specified in item 8, or if handcarried, in the depository located in _____ until _____ (hour) local time 2026APR24 (Date).

Caution - Late Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. For Information Call: ➡		A. Name KEANEESHA A CANADY		B. Telephone (No Collect Calls) Area Code (443) Number 861-4529 Ext.			C. E-mail Address KEANEESHA.A.CANADY@DLA.MIL
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11. Table Of Contents

(X)	Sec.	Description	Page(s)	(X)	Sec.	Description	Page(s)
Part I - The Schedule				Part II - Contract Clauses			
X	A	Solicitation/Contract Form	1	X	I	Contract Clauses	26
X	B	Supplies or Services and Prices/Costs	6	Part III - List Of Documents, Exhibits, And Other Attach.			
X	C	Description/Specs./Work Statement	12	X	J	List of Attachments	33
X	D	Packaging and Marking	14	Part IV - Representations And Instructions			
X	E	Inspection and Acceptance	15	X	K	Representations, Certifications, and Other Statements of Offerors	34
X	F	Deliveries or Performance	17				
X	G	Contract Administration Data	23	X	L	Instrs., Conds., and Notices to Offerors	40
X	H	Special Contract Requirements	25	X	M	Evaluation Factors for Award	43

OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. Discount For Prompt Payment (See Section I, Clause No. 52.232-8) ➡	10 Calendar Days (%)	20 Calendar Days (%)	30 Calendar Days (%)	Calendar Days (%)
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14. Acknowledgment of Amendments (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):		Amendment No.	Date	Amendment No.	Date

15A. Name and Address of Offeror		Code	Facility	16. Name and Title of Person Authorized to Sign Offer (Type or Print)	
15B. Telephone Number		15C. Check if Remittance Address is ☐ Different From Above - Enter such Address In Schedule		17. Signature	
Area Code	Number			18. Offer Date	

AWARD (To be completed by Government)

19. Accepted As To Items Numbered		20. Amount		21. Accounting And Appropriation	
22. Authority For Using Other Than Full And Open Competition: ☐ 10 U.S.C. 2304(c)() ☐ 41 U.S.C. 253(c)()		23. Submit Invoices To Address Shown In (4 copies unless otherwise specified) ➡		Item 25	
24. Administered By (If other than Item 7) Code		25. Payment Will Be Made By		Code	
26. Name of Contracting Officer (Type or Print)		27. United States Of America (Signature of Contracting Officer)		28. Award Date	

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 2 of 47
Name of Offeror or Contractor:		

SECTION A - SUPPLEMENTAL INFORMATION

Buyer Name: KEANEESHA A CANADY
 Buyer Office Symbol/Telephone Number: DSCC-ZLAA/(443)861-4529
 Type of Contract 1: Firm Fixed Price
 Kind of Contract: Supply Contracts and Priced Orders

*** End of Narrative A0000 ***

1. CONTRACT TYPE: This Request for Proposal (RFP) is a Firm Fixed Price (FFP) Indefinite Delivery/Indefinite Quantity (ID/IQ) contract, Long-Term Contract (LTC), consisting of one five-year base period with no option years.

2. ITEMS FOR PROCUREMENT: This acquisition is for the procurement of eleven (11) SINCGARS Installation Kits and the Associated Components. The items listed below are the subject of this solicitation and are expected to be acquired under this procurement action. See attachment 0001 for the following information:

NSN: 5895-01-218-3962
 Part Number: PPL-10132
 Nomenclature: Installation Kit, Electronic Equipment MK-2394/VRC
 Best Estimated Quantity (BEQ):
 Year 1: 82
 Year 2: 82
 Year 3: 82
 Year 4: 82
 Year 5: 54

NSN: 5985-01-590-7960
 Part Number: PPL10712
 Nomenclature: Installation Kit, Electronic Equipment MK-3149/VRC
 Best Estimated Quantity (BEQ):
 Year 1: 0
 Year 2: 32
 Year 3: 32
 Year 4: 32
 Year 5: 32

NSN: 5985-01-590-7962
 Part Number: C5078302-1
 Nomenclature: Speed Gear Assembly
 Best Estimated Quantity (BEQ):
 Year 1: 70
 Year 2: 70
 Year 3: 70
 Year 4: 71
 Year 5: 61

NSN: 5895-01-616-6168
 Part Number: PPL-10711
 Nomenclature: Installation Kit, Electronic Equipment MK-3174/VRC
 Best Estimated Quantity (BEQ):
 Year 1: 46
 Year 2: 46
 Year 3: 46
 Year 4: 46
 Year 5: 46

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIINMOD/AMD	Page 3 of 47
Name of Offeror or Contractor:		
NSN: 5895-01-241-0812 Part Number: PPL-10502 Nomenclature: Installation Kit, Electronic Equipment MK-2715/VRC Best Estimated Quantity (BEQ): Year 1: 72 Year 2: 73 Year 3: 73 Year 4: 70 Year 5: 60		
NSN: 5975-01-188-8873 Part Number: A3013367-1 Nomenclature: Mounting Base, Electrical Equipment MT-6352/VRC Best Estimated Quantity (BEQ): Year 1: 798 Year 2: 833 Year 3: 826 Year 4: 822 Year 5: 615		
NSN: 5965-01-222-1420 Part Number: A3014065-1 Nomenclature: Loudspeaker-Control Unit, LS-671/VRC Best Estimated Quantity (BEQ): Year 1: 0 Year 2: 1255 Year 3: 1255 Year 4: 0 Year 5: 0		
NSN: 5995-01-218-6466 Part Number: A3014035-4 Nomenclature: Cable Assembly, Special Purpose, Electrical CX-13290/VRC (22 FT, 0IN) Best Estimated Quantity (BEQ): Year 1: 4 Year 2: 4 Year 3: 4 Year 4: 0 Year 5: 0		
NSN: 5995-01-219-4706 Part Number: A3014038-5 Nomenclature: Cable Assembly, Special Purpose, Electrical CX-13292/VRC (18FT, 0IN) Best Estimated Quantity (BEQ): Year 1: 33 Year 2: 35 Year 3: 35 Year 4: 23 Year 5: 0		
NSN: 6150-01-300-9324 Part Number: A3014040-9 Nomenclature: Cable Assembly, Power, Electrical CX-13303/VRC (4FT, 6IN) Best Estimated Quantity (BEQ): Year 1: 1801 Year 2: 1943 Year 3: 1869 Year 4: 1869 Year 5: 653		
NSN: 5995-01-382-6869 Part Number: A3014038-14 Nomenclature: Cable Assembly, Special Purpose, Electrical CX-13292/VRC (100FT, 0IN) Best Estimated Quantity (BEQ):		

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 4 of 47
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Name of Offeror or Contractor:

Year 1: 126
Year 2: 126
Year 3: 126
Year 4: 121
Year 5: 20

The Best Estimated Quantities (BEQ) listed above are not guaranteed and should be used for planning purposes only.

The minimum contract value for all award(s) single and combined is \$19,134,798.61.
The maximum contract value for all award(s) single and combined is \$25,608,267.09.

A company wishing to receive the TDPs must have an active status in the Defense Logistics Agency Joint Certification Program (JCP). Once your company has been verified to have active status in JCP, we will upload the TDPs that will be uploaded into DOD Safe Access File Exchange (SAFE). You will then receive an e-mail from the DOD SAFE site, <https://safe.apps.mil/>, with a link to the package ID and a password.

3. PERIOD OF PERFORMANCE: This is a five-year base contract and no option period of performance contract. The period of performance contract years will be incorporated in the award.

4. GENERAL INSTRUCTIONS: This Solicitation package includes the RFP and the following Exhibit(s) and Attachment(s): Exhibit A Technical Requirements Document) - This document contains the separately priced CDRL requirements for this acquisition. A Pricing/Delivery spreadsheet is attached.

Exhibit B - Technical Data Package - This document provides the specification requirements for this acquisition.

This RFP and above referenced Exhibit(s) and Attachment(s) are available for download via the Government Point of Entry: [HYPERLINK "https://sam.gov"](https://sam.gov) <https://sam.gov> under Contract Opportunities.

Refer to the RFP's Section L, Section M, and for additional information. Prospective Offerors should insert prices, complete all required and applicable clauses/provisions, fill-ins within the RFP, and email a signed electric copy of the RFP to both the Contract Specialist and Contracting Officer Point of Contracts (POC) listed below on or prior to the Solicitation closing date.

Contract Specialist Keaneesha Canady, Keaneesha.A.Canady@dla.mil
Contracting Officer Matthew Casey, [HYPERLINK "mailto:Matthew.W.Casey@dla.mil"](mailto:Matthew.W.Casey@dla.mil) Matthew.W.Casey@dla.mil

5. UNIT PRICES: Proposed unit prices shall be for items specified in RFP. All parts necessary shall be furnished by the Contractor and should be considered to have been included in the proposed unit price of the item. The Government does not intend to price CDRLs, and the costs associated with them should be included in the unit prices. Pricing is being solicited for four (4) quantity ranges with F.O.B. destination and packaging as indicated in Supplies or Services and Price/Costs section of the solicitation. While not being requested with initial offers, certified cost or pricing data may be required pursuant to FAR 15.403-4. If required, the Contracting Officer will notify offerors during negotiations.

6. ACCELERATED DELIVERIES: Accelerated delivery at no additional cost to the Government is accepted and encouraged.

7. WARRANTY: The Contractor shall provide a one year no-cost commercial warranty to the item on this contract. The Contractor shall warrant the item order on this contract for a period of 12 months from Government acceptance on DD 250. Clause Warranty of Supplies of a Noncomplex Nature 52.246-17.

8. Packaging: Packaging/packing for the following NSNs shall be in accordance with CECOM Special Package Instruction SPI-AG00000621. Level of Preservation (LOP): Military, Level of Pack (LPK): B, Quantity Unit Pack (QUP): 001. Radio Frequency Identification (RFID) Requirements shall be in accordance with Section F of the contract. Marking shall be in accordance with MIL-STD-129R. Packaging details for each NSN can be found in Exhibit A Technical Requirements Document.

9. FIRST ARTICLE TEST AND WAIVER: Contractor Performed First Article Testing (FAT) is applicable. For the SINCGARS Installation Kits (IKs), FAT is performed on the major components of the IKs, to include Mounting Base MT-6352/VRC, Loudspeaker - Control Unit LS-671/VRC, Antenna AS-3900A/VRC, Antenna AS-3916/VRC, Handset H-250/VCEB and the Various Cable Assemblies. The Contractor shall submit the first article test report within [270] calendar days from the date of this contract to [the Contracting Officer, DLA Land at Aberdeen, 6565 Surveillance Loop, Room C1-301, Aberdeen Proving Ground, MD 21005-1846, DODAAC SPRBL1]. Within [30] calendar days after the Government receives the test report, the Contracting Officer shall notify the Contractor, in writing, of the conditional approval, approval, or disapproval of the first article.

10. PROPOSAL VALIDITY: It is requested that proposals be valid for 90 days after the solicitation closing date.

CONTINUATION SHEET	Reference No. of Document Being Continued	Page 5 of 47
	SPRBL1-26-R-0007 PIIN/SIINMOD/AMD	

Name of Offeror or Contractor:

11. COVERED DEFENSE INFORMATION (CDI): The Government is not identifying additional CDI for this requirement, but it does not constitute a lack of CDI for this solicitation/award.

12. DLAD PROCUREMENT NOTES INCORPORATED BY REFERENCE (APR 3, 2025): This solicitation incorporates one or more DLAD Procurement Notes by reference, with the same force and effect as if they were given in full text. The full text of a DLAD Procurement Note may be Accessed electronically at <http://www.dla.mil/HQ/Acquisition/Offers/eProcurement.aspx> under DLA Directive (DLAD) Procurement Notes. The applicable version is dated April 3, 2025.

13. DLAD TECHNICAL AND QUALITY REQUIREMENTS INCORPORATED BY REFERENCE

14. INSPECTION/ACCEPTANCE: Inspection and Acceptance shall be conducted at origin.

15. FOB: Delivery shall be made FOB Destination and pricing should be inclusive of such.

*** END OF NARRATIVE A0001 ***

[illegible]

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
C001	Packaging and Marking Inspection and Acceptance INSPECTION: Origin ACCEPTANCE: Origin Deliveries or Performance DOC SUPPL REL CD MILSTRIP ADDR SIG_CD MARK FOR TP_CD 001 3 DEL REL CD QUANTITY DEL DATE 001 1 SEE DD FORM 1423 FOB POINT: Destination SHIP TO: (SPRBL1) DLA LAND AT ABERDEEN DLR PROCUREMENT OPERATIONS - ZL 6565 SURVEILLANCE LOOP RM C1-301 ABER PROV GRD,MD,21005 Hardware - Not Priced COMMODITY NAME: SPECIFICATION CHANGE NOTICE CLIN CONTRACT TYPE: Firm Fixed Price Packaging and Marking Inspection and Acceptance INSPECTION: Origin ACCEPTANCE: Origin Deliveries or Performance DOC SUPPL REL CD MILSTRIP ADDR SIG_CD MARK FOR TP_CD 001 3 DEL REL CD QUANTITY DEL DATE 001 1 SEE DD FORM 1423 FOB POINT: Destination SHIP TO: (SPRBL1) DLA LAND AT ABERDEEN DLR PROCUREMENT OPERATIONS - ZL 6565 SURVEILLANCE LOOP RM C1-301 ABER PROV GRD,MD,21005	1	EA	\$ ** NSP **	\$ ** NSP **
D001	Hardware - Not Priced	1	EA	\$ ** NSP **	\$ ** NSP **

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
E001	COMMODITY NAME: REQUEST FOR VARIANCE CLIN CONTRACT TYPE: Firm Fixed Price <u>Packaging and Marking</u> <u>Inspection and Acceptance</u> INSPECTION: Origin ACCEPTANCE: Origin <u>Deliveries or Performance</u> DOC				

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
F001	6565 SURVEILLANCE LOOP RM C1-301 ABER PROV GRD,MD,21005 Hardware - Not Priced COMMODITY NAME: TECH DATA PKG REVIEW RPT-PROD CLIN CONTRACT TYPE: Firm Fixed Price Packaging and Marking Inspection and Acceptance INSPECTION: Origin ACCEPTANCE: Origin Deliveries or Performance DOC SUPPL REL CD MILSTRIP ADDR SIG_CD MARK_FOR TP_CD 001 3 DEL_REL_CD QUANTITY DEL_DATE 001 1 SEE DD FORM 1423 FOB POINT: Destination SHIP TO: (SPRBL1) DLA LAND AT ABERDEEN DLR PROCUREMENT OPERATIONS - ZL 6565 SURVEILLANCE LOOP RM C1-301 ABER PROV GRD,MD,21005	1	EA	\$ ** NSP **	\$ ** NSP **
G001	Hardware - Not Priced COMMODITY NAME: TECH REPORT-STUDY/SRV-PRODUCT CLIN CONTRACT TYPE: Firm Fixed Price Packaging and Marking Inspection and Acceptance INSPECTION: Origin ACCEPTANCE: Origin Deliveries or Performance DOC SUPPL REL CD MILSTRIP ADDR SIG_CD MARK_FOR TP_CD 001 3 DEL_REL_CD QUANTITY DEL_DATE 001 1 SEE DD FORM 1423	1	EA	\$ ** NSP **	\$ ** NSP **

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
H001	FOB POINT: Destination SHIP TO: (SPRBL1) DLA LAND AT ABERDEEN DLR PROCUREMENT OPERATIONS - ZL 6565 SURVEILLANCE LOOP RM C1-301 ABER PROV GRD,MD,21005 Hardware - Not Priced COMMODITY NAME: FIRST ARTICLE QUALIFICATION CLIN CONTRACT TYPE: Firm Fixed Price Packaging and Marking Inspection and Acceptance INSPECTION: Origin ACCEPTANCE: Origin Deliveries or Performance DOC SUPPL REL CD MILSTRIP ADDR SIG CD MARK FOR TP CD 001 3 DEL REL CD QUANTITY DEL DATE 001 1 SEE DD FORM 1423 FOB POINT: Destination SHIP TO: (SPRBL1) DLA LAND AT ABERDEEN DLR PROCUREMENT OPERATIONS - ZL 6565 SURVEILLANCE LOOP RM C1-301 ABER PROV GRD,MD,21005	1	EA	\$ ** NSP **	\$ ** NSP **
J001	Hardware - Not Priced COMMODITY NAME: FIRST ARTICLE TEST/INSP PROCE CLIN CONTRACT TYPE: Firm Fixed Price Packaging and Marking Inspection and Acceptance INSPECTION: Origin ACCEPTANCE: Origin	1	EA	\$ ** NSP **	\$ ** NSP **

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 11 of 47
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Page 11 of 47

PIIN/SIIN**Name of Offeror or Contractor:**

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
	<u>Deliveries or Performance</u> DOC SUPPL REL CD MILSTRIP ADDR SIG CD MARK FOR TP CD 001 3 DEL REL CD QUANTITY DEL DATE 001 1 SEE DD FORM 1423 FOB POINT: Destination SHIP TO: (SPRBL1) DLA LAND AT ABERDEEN DLR PROCUREMENT OPERATIONS - ZL 6565 SURVEILLANCE LOOP RM C1-301 ABER PROV GRD,MD,21005				
1000	<u>PRODUCTION QUANTITY-SEE ATTACHMENT 1</u> COMMODITY NAME: INSTALATION KIT <u>Packaging and Marking</u> <u>Deliveries or Performance</u> FOB POINT: SHIP TO: (SPRBL1) DLA LAND AT ABERDEEN DLR PROCUREMENT OPERATIONS - ZL 6565 SURVEILLANCE LOOP RM C1-301 ABER PROV GRD,MD,21005			\$	\$

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN	Page 13 of 47 MOD/AMD
---------------------------	--	--

Name of Offeror or Contractor:

(i) The specification/drawing is in the possession of the offeror. Yes ___ No ___
(ii) The offeror has stated the applicable information below: Yes ___ No ___
Specification/Drawing Number _____
Revision (if any) _____
Date _____ (9) The material has been inspected for correct part number and for
absence of corrosion or any obvious defects. Yes ___ No ___
If Yes, complete the following:
(i) Material has been re-preserved. Yes ___ No ___
(ii) Material has been repackaged. Yes ___ No ___
(iii) Percentage of
C14 Correction of Nonconforming Packaging or Marking (MAY 2020)
C10 PLACEMENT OF TASK/DELIVERY ORDERS AGAINST MULTIPLE IDCs (AUG 2017)

DLAD T/Q RQ018 - Contractor Retention of Supply Chain Traceability Documentation (Aug 2016).

Full text of procurement notes may be found at <http://www.dla.mil/HQ/Acquisition/Offers/EProcurement.aspx> under DLA Directive (DLAD)
Procurement Notes. Applicable version is dated June 22, 2018.

*** END OF NARRATIVE C0001 ***

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIINMOD/AMD	Page 14 of 47
Name of Offeror or Contractor:		

SECTION D - PACKAGING AND MARKING

PACKAGING AND MARKING

SECTION D Packaging and Marking

Refer to Supplies or Services for packaging and marking requirements.

PACKAGING: Packaging/packing for the NSNs list below shall be in accordance with CECOM Special Package Instruction SPI-AG00000621. The packaging requirements may also be included in the Technical Requirements Document (TRD), if included under Section J.

MARKING: Marking shall be in accordance with MIL-STD-129R (3).

GENERAL: Military packaging is required

Level of Preservation (LOP): Military

Level of Pack (LPK): B

Quantity Unit Pack (QUP): 001

DLAD PROCUREMENT NOTES INCORPORATED BY REFERENCE

This solicitation/contract incorporates one or more DLAD Procurement Notes by reference, with the same force and effect as if they were given in full text. The full text of a DLAD Procurement Note may be accessed electronically at

HYPERLINK "<http://www.dla.mil/HQ/Acquisition/Offers/EProcurement.aspx>"<http://www.dla.mil/HQ/Acquisition/Offers/EProcurement.aspx>.

DLAD T/Q RP001 - DLA Packaging Requirements for Procurement

Supplemental Note to DLAD T/Q RP001: Marking shall be in accordance with MIL-STD-129R (3).

DLAD T/Q RQ011 - Removal of Government Identification from Non-Accepted Supplies

DLAD T/Q RQ018 - Contractor Retention of Supply Chain Traceability Documentation (Aug 2016)

*** END OF NARRATIVE D0001 ***

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN	Page 15 of 47 MOD/AMD
---------------------------	--	--

Name of Offeror or Contractor:

SECTION E - INSPECTION AND ACCEPTANCE

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>
 For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	Regulatory Cite	Title	Date
E-1	52.246-2	INSPECTION OF SUPPLIES--FIXED-PRICE	AUG/1996
E-2	52.246-16	RESPONSIBILITY FOR SUPPLIES	APR/1984

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>
 For DFARS clauses: [HYPERLINK](https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html)
["https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html"](https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html)
<https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>
 Proc note E05 Product Verification Testing (MAY 2020)

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

E06 Inspection and Acceptance at Source (JUN 2018)
 Inspection and acceptance are at source. The place of acceptance is the location where the Government conducts the last inspection before shipment, unless the contractor indicates a different physical location for acceptance below.
 The contractor shall indicate the location where supplies will be inspected, if different from the production location:
 Commercial and Government Entity (CAGE) code:_____

Address:_____
 Applicable to contract line item numbers(s) (CLIN(s)):_____

The contractor shall indicate the location where packaging will be inspected, if different from the production location:
 () Same as for supplies OR
 CAGE code: _____
 Address: _____

Applicable to CLIN(s): _____
 The contractor shall indicate the location where supplies will be accepted, if different from the inspection location:
 Commercial and Government Entity (CAGE) code:_____

Address:_____
 Applicable to contract line item numbers(s) (CLIN(s)):_____

RQ009: Inspection and Acceptance at Origin
 The inspection location for supplies is the awardee's CAGE CODE address unless otherwise indicated in the contract/purchase order.
 Inspection will be conducted by the Government's Quality Assurance Representative (QAR). Inspection of packaging, if required, may be conducted at the packaging location cited in the award. The place of acceptance is the location where the Government conducts the last inspection before shipment, unless the contractor indicates a different physical location per DLA Procurement Note E06 "Inspection and Acceptance at Source."

SECTION I (All Awards)

- Objective evidence of conformance with all contract quality assurance requirements must be present at the inspection location. When requested, manufacturer drawings and technical information and complete records of all inspection work performed to verify that the supplies that meet technical requirements shall be provided. If required to determine conformity with contract requirements, subcontractor records shall also be provided. The Government Quality Assurance Representative (QAR) may require additional examinations and tests.
- Objective evidence to establish the location of the actual manufacturing source may also be requested to confirm the product country of origin and/or business size of the manufacturer.
- If the supplier is not the manufacturer of the supplies, furnish objective evidence to establish that the supplies were produced by an approved manufacturer or approved source. If supplies being provided are described only by manufacturer's name/CAGE Code and part number, objective evidence must be furnished to establish that the supplies were manufactured under the direction of or under agreement with the CAGE Code of the number offered.
- The Post Award Administrator (PCO) will be notified if the QAR is denied access to the offeror's facility at time of Government Source Inspection (GSI).

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 16 of 47
Name of Offeror or Contractor:		

*** END OF NARRATIVE E0001 ***

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 17 of 47
---	---	---

Name of Offeror or Contractor:

SECTION F - DELIVERIES OR PERFORMANCE

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
F-1	52.242-15	STOP-WORK ORDER	AUG/1989
F-2	52.247-34	F.O.B. DESTINATION (JAN 1991)	FEB/2006
F-3	52.247-48	F.O.B. DESTINATION--EVIDENCE OF SHIPMENT	FEB/1999
F-4	52.247-58	LOADING, BLOCKING, AND BRACING OF FREIGHT CAR SHIPMENTS	APR/1984
F-5	252.211-7008	USE OF GOVERNMENT-ASSIGNED SERIAL NUMBERS	SEP/2010
F-6	252.211-7003	ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)	JAN/2023

(a) Definitions. As used in this clause--

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html> .

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

Name of Offeror or Contractor:

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459 .

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html> .

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) Unique item identifier.

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
__-1-_____	-2-_____
__-1-_____	-2-_____
__-1-_____	-2-_____

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or Exhibit Line Item Number	Item Description
-3-	-4-
-3-	-4-
-3-	-4-

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparables and DoD serially managed nonreparables as specified in Attachment Number -5-.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number -6-.

(v) Any item not included in paragraphs (c)(1)(i), (ii), (iii), or (iv) of this clause for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology--International symbology specification--Data matrix; ECC200 data matrix specification.

(4) Data syntax and semantics of unique item identifiers. The Contractor shall ensure that--

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology--EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology-Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) Unique item identifier.

(i) The Contractor shall--

(A) Determine whether to--

- (1) Serialize within the enterprise identifier;
- (2) Serialize within the part, lot, or batch number; or
- (3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 20 of 47
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Name of Offeror or Contractor:

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: Original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

- (ii) The issuing agency code--
 - (A) Shall not be placed on the item; and
 - (B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.**
- (4) Issuing agency code (if concatenated unique item identifier is used).**
- (5) Enterprise identifier (if concatenated unique item identifier is used).**

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 21 of 47
--	---	--

Name of Offeror or Contractor:

- (6) Original part number (if there is serialization within the original part number).**
- (7) Lot or batch number (if there is serialization within the lot or batch number).**
- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/> .

(2) Embedded items shall be reported by one of the following methods--

- (i) Use of the embedded items capability in WAWF;
- (ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/> ; or
- (iii) Via WAWF as a deliverable attachment for exhibit line item number -7-, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) Subcontracts. If the Contractor acquires by subcontract any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

Offeror's Proposed Delivery: See Attachment 0001

(b) GOVERNMENT'S DESIRED DELIVERY

(a) Offers in response to this solicitation will be evaluated as specified in the solicitation. Delivery shall be offered in terms of a number of days after date of award. The number of delivery days required in this solicitation is calculated based on the Governments planned need and customer requirements. Unless delivery is identified elsewhere in the solicitation as an evaluation factor, Offerors are encouraged to confirm their delivery terms as closely as possible to the delivery days required, and there will be no evaluation preference, or penalty for faster delivery. Offering a greater number of delivery days than the required delivery schedule may result in the offer is not considered; however, the Government reserves the right to consider offered delivery times that exceed the number of delivery days required by the Government. Delivery is required by the Government in accordance with the following schedule:

CLIN 0001, 0002, 0003, 0004, 0005

10 each 180 days after award and 10 every 30 days thereafter

(b) The Government may elect to consider for award only those offers that comply with the required delivery schedule but reserves the right to consider offered delivery times that exceed the number of delivery days required by the Government. The Offeror may propose an alternative delivery schedule below. If the offeror proposes no other delivery schedule, the required delivery schedule above will apply.

OFFERORS PROPOSED DELIVERY

CLIN 0001, 0002, 0003, 0004, 0005

_____ EA _____ days after receipt of order and _____ each every _____ days thereafter until completion.

(c) The Government will mail, or otherwise furnish to, the Offeror an award or notice of award not later than the day the award is dated. Therefore, the Offeror shall compute the time available for performance beginning with the actual date of award, rather than the date the written notice of award is received from the Contracting Officer through ordinary mails. However, the Government will

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 22 of 47
---------------------------	---	----------------------

Name of Offeror or Contractor:

evaluate an offer that proposes delivery based on the Contractor's date of receipt of the award or notice of award by adding: five calendar days for delivery of the award through ordinary mail, or one working day if the solicitation states that the award or notice of award will be transmitted electronically. (The term "working day" excludes weekends and United States (U.S.) Federal holidays.)

*** END OF NARRATIVE F0001 ***

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 23 of 47
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Name of Offeror or Contractor:

SECTION G - CONTRACT ADMINISTRATION DATA

Regulatory Cite	Title	Date
G-1 252.232-7006	WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)	JAN/2023

(a) Definitions. As used in this clause

Department of Defense Activity Address Code (DoDAAC) is a six position code that uniquely identifies a unit, activity, or organization.

Document type means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

Local processing office (LPO) is the office responsible for payment certification when payment certification is done external to the entitlement system.

Payment request and receiving report are defined in the clause at 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov> ; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the Web Based Training link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

-1-

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

-2-

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF combo document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN	Page 24 of 47 MOD/AMD
Name of Offeror or Contractor:		

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	-3-
Issue By DoDAAC	-4-
Admin DoDAAC**	-5-
Inspect By DoDAAC	-6-
Ship To Code	-7-
Ship From Code	-8-
Mark For Code	-9-
Service Approver (DoDAAC)	-10-
Service Acceptor (DoDAAC)	-11-
Accept at Other DoDAAC	-12-
LPO DoDAAC	-13-
DCAA Auditor DoDAAC	-14-
Other DoDAAC(s)	-15-

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert See Schedule or Not applicable.)

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

-16-

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 25 of 47
Name of Offeror or Contractor:		

SECTION H - SPECIAL CONTRACT REQUIREMENTS

PLACING AND PROCESSING ORDERS

In the event two or more orders are placed for the same NSN on the same delivery schedule within a 60-calendar day timeframe, the orders will be combined, and the Government will receive the price benefit of the larger combined quantity as if the orders had been placed at the same time. In the event of this occurrence, the contracting officer will adjust the unit prices accordingly on the delivery orders in question. Schedules will be unaffected by the combination of the orders as described herein.

Orders that are placed for the same NSN on the same delivery schedule within a 60-calendar day timeframe that cross over two contracts years (i.e., ordering year one and ordering year two) are subject to the order combination and price adjustment provisions discussed above, the pricing on the schedule for the earlier contract year will apply for the combined quantity.

Delivery order pricing is determined by date delivery order is issued.

DLAD PROCUREMENT NOTES INCORPORATED BY REFERENCE

DLAD T/Q RQ0111 - REMOVAL OF GOVERNMENT IDENTIFICATION FROM NON-ACCEPTED SUPPLIES (MAY 2021)

*** END OF NARRATIVE H0001 ***

CONTINUATION SHEET	Reference No. of Document Being Continued		Page 26 of 47
	PIIN/SIIN	MOD/AMD	

Name of Offeror or Contractor:

SECTION I - CONTRACT CLAUSES

This document incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the clause requires additional or unique information, then that information is provided immediately after the clause title.

	Regulatory Cite	Title	Date
I-1	52.202-1	DEFINITIONS	JUN/2020
I-2	52.203-3	GRATUITIES	APR/1984
I-3	52.203-5	COVENANT AGAINST CONTINGENT FEES	MAY/2014
I-4	52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (NOV 2021)	NOV/2021
I-5	52.203-7	ANTI-KICKBACK PROCEDURES	JUN/2020
I-6	52.203-8	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY	MAY/2014
I-7	52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY	MAY/2014
I-8	52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	JUN/2020
I-9	52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN/2017
I-10	52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS (FEB 2026)	FEB/2026
I-11	52.204-13	SYSTEM FOR AWARD MANAGEMENT-MAINTENANCE (FEB 2026)	FEB/2026
I-12	52.209-6	PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (FEB 2026)	FEB/2026
I-13	52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026)	FEB/2026
I-14	52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (FEB 2026)	FEB/2026
I-15	52.211-15	DEFENSE PRIORITY AND ALLOCATION REQUIREMENTS	APR/2008
I-16	52.212-4	CONTRACT TERMS AND CONDITIONS--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (FEB 2026)	FEB/2026
I-17	52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT	DEC/2010
I-18	52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)	MAY/2024
I-19	52.229-3	FEDERAL, STATE, AND LOCAL TAXES	FEB/2013
I-20	52.232-1	PAYMENTS	APR/1984
I-21	52.232-8	DISCOUNTS FOR PROMPT PAYMENT	FEB/2002
I-22	52.232-11	EXTRAS	APR/1984
I-23	52.232-17	INTEREST	MAY/2014
I-24	52.232-23	ASSIGNMENT OF CLAIMS (MAY 2014) -- ALTERNATE I (APR 1984)	APR/1984
I-25	52.232-25	PROMPT PAYMENT	JAN/2017
I-26	52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS	JUN/2013
I-27	52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS(MAR 2023)	MAR/2023
I-28	52.233-3	PROTEST AFTER AWARD (FEB 2026)	FEB/2026
I-29	52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (FEB 2026)	FEB/2026
I-30	52.242-13	BANKRUPTCY	JUL/1995
I-31	52.243-1	CHANGES--FIXED PRICE	FEB/2026
I-32	52.244-5	COMPETITION IN SUBCONTRACTING (AUG 2024)	AUG/2024
I-33	52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025) (DEVIATION 2025-00003)	FEB/2026
I-34	52.249-2	TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE)	APR/2012
I-35	52.249-8	DEFAULT (FIXED-PRICE SUPPLY AND SERVICE)	APR/1984
I-36	52.253-1	COMPUTER GENERATED FORMS	FEB/2026
I-37	252.203-7000	REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS	SEP/2011
I-38	252.203-7001	PROHIBITION ON PERSONS CONVICTED OF FRAUD OR OTHER DEFENSE-CONTRACT-	JAN/2023

CONTINUATION SHEET	Reference No. of Document Being Continued		Page 27 of 47
	PIIN/SIIN	MOD/AMD	

SPRBL1-26-R-0007

Name of Offeror or Contractor:

	Regulatory Cite	Title	Date
		RELATED FELONIES (JAN 2023)	
I-39	252.203-7002	REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022)	DEC/2022
I-40	252.203-7003	AGENCY OFFICE OF THE INSPECTOR GENERAL	AUG/2019
I-41	252.203-7004	DISPLAY OF HOTLINE POSTERS (JAN 2023)	JAN/2023
I-42	252.204-7000	DISCLOSURE OF INFORMATION	OCT/2016
I-43	252.204-7003	CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT	APR/1992
I-44	252.204-7012	SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING (MAY 2024) (DEVIATION 2024-00013, REVISION 1)	MAY/2024
I-45	252.204-7015	NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION SUPPORT (JAN 2023)	JAN/2023
I-46	252.204-7018	PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023)	JAN/2023
I-47	252.204-7020	NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)	NOV/2023
I-48	252.204-7022	EXPEDITING CONTRACT CLOSEOUT	MAY/2021
I-49	252.205-7000	PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS (OCT 2024)	OCT/2024
I-50	252.209-7004	SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY E GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM (MAY 2019)	MAY/2019
I-51	252.222-7006	RESTRICTIONS ON THE USE OF MANDATORY ARBITRATION AGREEMENTS (JAN 2023)	JAN/2023
I-52	252.225-7001	BUY AMERICAN AND BALANCE OF PAYMENTS PROGRAM-ALTERNATE II (FEB 2024)	FEB/2024
I-53	252.225-7002	QUALIFYING COUNTRY SOURCES AS SUBCONTRACTORS	MAR/2022
I-54	252.225-7008	RESTRICTION ON ACQUISITION OF SPECIALTY METALS	MAR/2013
I-55	252.225-7012	PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES	APR/2022
I-56	252.225-7048	EXPORT-CONTROLLED ITEMS	JUN/2013
I-57	252.225-7052	RESTRICTION ON THE ACQUISITION OF CERTAIN MAGNETS, TANTALUM, AND TUNGSTEN (MAY 2024)	MAY/2024
I-58	252.225-7056	PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (JAN 2023)	JAN/2023
I-59	252.226-7001	UTILIZATION OF INDIAN ORGANIZATIONS, INDIAN-OWNED ECONOMIC ENTERPRISES, AND NATIVE HAWAIIAN SMALL BUSINESS CONCERNS (JAN 2023)	JAN/2023
I-60	252.232-7003	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS	DEC/2018
I-61	252.232-7010	LEVIES ON CONTRACT PAYMENTS	DEC/2006
I-62	252.243-7001	PRICING OF CONTRACT MODIFICATIONS	DEC/1991
I-63	252.243-7002	REQUESTS FOR EQUITABLE ADJUSTMENT (DEC 2022)	DEC/2022
I-64	252.244-7000	SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (NOV 2023)	NOV/2023
I-65	252.246-7003	NOTIFICATION OF POTENTIAL SAFETY ISSUES (JAN 2023)	JAN/2023
I-66	252.246-7007	CONTRACTOR COUNTERFEIT ELECTRONIC PART DETECTION AND AVOIDANCE SYSTEM (JAN2023)	JAN/2023
I-67	252.246-7008	SOURCES OF ELECTRONIC PARTS (JAN 2023)	JAN/2023
I-68	252.247-7023	TRANSPORTATION OF SUPPLIES BY SEA--BASIC (OCT 2024)	OCT/2024
I-69	52.227-14	Rights in Data-General (May 2014)	MAY/2014

Rights in Data-General (May 2014)

(a)Definitions. As used in this clause-

Computer database or "database means" a collection of recorded information in a form capable of, and for the purpose of, being stored in, processed, and operated on by a computer. The term does not include computer software.

Computer software-

(1)Means (i)Computer programs that comprise a series of instructions, rules, routines, or statements, regardless of the media in which recorded, that allow or cause a computer to perform a specific operation or series of operations; and (ii)Recorded information comprising source code listings, design details, algorithms, processes, flow charts, formulas, and related material that would enable the computer program to be produced, created, or compiled.

(2)Does not include computer databases or computer software documentation.

Computer software documentation means owners manuals, users manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 28 of 47
---	---	---

Name of Offeror or Contractor:

the software.

Data means recorded information, regardless of form or the media on which it may be recorded. The term includes technical data and computer software. The term does not include information incidental to contract administration, such as financial, administrative, cost or pricing, or management information.

Form, fit, and function data means data relating to items, components, or processes that are sufficient to enable physical and functional interchangeability, and data identifying source, size, configuration, mating and attachment characteristics, functional characteristics, and performance requirements. For computer software it means data identifying source, functional characteristics, and performance requirements but specifically excludes the source code, algorithms, processes, formulas, and flow charts of the software.

Limited rights means the rights of the Government in limited rights data as set forth in the Limited Rights Notice of paragraph (g)(3) if included in this clause.

Limited rights data means data, other than computer software, that embody trade secrets or are commercial or financial and confidential or privileged, to the extent that such data pertain to items, components, or processes developed at private expense, including minor modifications.

Restricted computer software means computer software developed at private expense and that is a trade secret, is commercial or financial and confidential or privileged, or is copyrighted computer software, including minor modifications of the computer software.

Restricted rights, as used in this clause, means the rights of the Government in restricted computer software, as set forth in a Restricted Rights Notice of paragraph (g) if included in this clause, or as otherwise may be provided in a collateral agreement incorporated in and made part of this contract, including minor modifications of such computer software.

Technical data means recorded information (regardless of the form or method of the recording) of a scientific or technical nature (including computer databases and computer software documentation). This term does not include computer software or financial, administrative, cost or pricing, or management data or other information incidental to contract administration. The term includes recorded information of a scientific or technical nature that is included in computer databases (See 41 U.S.C. 116).

Unlimited rights means the rights of the Government to use, disclose, reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly, in any manner and for any purpose, and to have or permit others to do so.

(b)Allocation of rights. (1)Except as provided in paragraph (c) of this clause, the Government shall have unlimited rights in-

(i)Data first produced in the performance of this contract;

(ii)Form, fit, and function data delivered under this contract;

(iii)Data delivered under this contract (except for restricted computer software) that constitute manuals or instructional and training material for installation, operation, or routine maintenance and repair of items, components, or processes delivered or furnished for use under this contract; and

(iv)All other data delivered under this contract unless provided otherwise for limited rights data or restricted computer software in accordance with paragraph (g) of this clause.

(2)The Contractor shall have the right to-

(i)Assert copyright in data first produced in the performance of this contract to the extent provided in paragraph (c)(1) of this clause;

(ii)Use, release to others, reproduce, distribute, or publish any data first produced or specifically used by the Contractor in the performance of this contract, unless provided otherwise in paragraph (d) of this clause;

(iii)Substantiate the use of, add, or correct limited rights, restricted rights, or copyright notices and to take other appropriate action, in accordance with paragraphs (e) and (f) of this clause; and

(iv)Protect from unauthorized disclosure and use those data that are limited rights data or restricted computer software to the extent provided in paragraph (g) of this clause.

(c)Copyright- (1)Data first produced in the performance of this contract. (i)Unless provided otherwise in paragraph (d) of this clause, the Contractor may, without prior approval of the Contracting Officer, assert copyright in scientific and technical articles based on or containing data first produced in the performance of this contract and published in academic, technical or professional journals, symposia proceedings, or similar works. The prior, express written permission of the Contracting Officer is required to assert copyright in all other data first produced in the performance of this contract.

(ii)When authorized to assert copyright to the data, the Contractor shall affix the applicable copyright notices of 17 U.S.C. 401 or

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 29 of 47
----------------------------------	--	-----------------------------

Name of Offeror or Contractor:

402, and an acknowledgment of Government sponsorship (including contract number).

(iii)For data other than computer software, the Contractor grants to the Government, and others acting on its behalf, a paid-up, nonexclusive, irrevocable, worldwide license in such copyrighted data to reproduce, prepare derivative works, distribute copies to the public, and perform publicly and display publicly by or on behalf of the Government. For computer software, the Contractor grants to the Government, and others acting on its behalf, a paid-up, nonexclusive, irrevocable, worldwide license in such copyrighted computer software to reproduce, prepare derivative works, and perform publicly and display publicly (but not to distribute copies to the public) by or on behalf of the Government.

(2)Data not first produced in the performance of this contract. The Contractor shall not, without the prior written permission of the Contracting Officer, incorporate in data delivered under this contract any data not first produced in the performance of this contract unless the Contractor-

(i)Identifies the data; and

(ii)Grants to the Government, or acquires on its behalf, a license of the same scope as set forth in paragraph (c)(1) of this clause or, if such data are restricted computer software, the Government shall acquire a copyright license as set forth in paragraph (g)(4) of this clause (if included in this contract) or as otherwise provided in a collateral agreement incorporated in or made part of this contract.

(3)Removal of copyright notices. The Government will not remove any authorized copyright notices placed on data pursuant to this paragraph (c), and will include such notices on all reproductions of the data.

(d)Release, publication, and use of data. The Contractor shall have the right to use, release to others, reproduce, distribute, or publish any data first produced or specifically used by the Contractor in the performance of this contract, except-

(1)As prohibited by Federal law or regulation (e.g., export control or national security laws or regulations);

(2)As expressly set forth in this contract; or

(3)If the Contractor receives or is given access to data necessary for the performance of this contract that contain restrictive markings, the Contractor shall treat the data in accordance with such markings unless specifically authorized otherwise in writing by the Contracting Officer.

(e)Unauthorized marking of data. (1)Notwithstanding any other provisions of this contract concerning inspection or acceptance, if any data delivered under this contract are marked with the notices specified in paragraph (g)(3) or (g) (4) if included in this clause, and use of the notices is not authorized by this clause, or if the data bears any other restrictive or limiting markings not authorized by this contract, the Contracting Officer may at any time either return the data to the Contractor, or cancel or ignore the markings. However, pursuant to 41 U.S.C. 4703, the following procedures shall apply prior to canceling or ignoring the markings.

(i)The Contracting Officer will make written inquiry to the Contractor affording the Contractor 60 days from receipt of the inquiry to provide written justification to substantiate the propriety of the markings;

(ii)If the Contractor fails to respond or fails to provide written justification to substantiate the propriety of the markings within the 60-day period (or a longer time approved in writing by the Contracting Officer for good cause shown), the Government shall have the right to cancel or ignore the markings at any time after said period and the data will no longer be made subject to any disclosure prohibitions.

(iii)If the Contractor provides written justification to substantiate the propriety of the markings within the period set in paragraph (e)(1)(i) of this clause, the Contracting Officer will consider such written justification and determine whether or not the markings are to be cancelled or ignored. If the Contracting Officer determines that the markings are authorized, the Contractor will be so notified in writing. If the Contracting Officer determines, with concurrence of the head of the contracting activity, that the markings are not authorized, the Contracting Officer will furnish the Contractor a written determination, which determination will become the final agency decision regarding the appropriateness of the markings unless the Contractor files suit in a court of competent jurisdiction within 90 days of receipt of the Contracting Officers decision. The Government will continue to abide by the markings under this paragraph (e)(1)(iii) until final resolution of the matter either by the Contracting Officers determination becoming final (in which instance the Government will thereafter have the right to cancel or ignore the markings at any time and the data will no longer be made subject to any disclosure prohibitions), or by final disposition of the matter by court decision if suit is filed.

(2)The time limits in the procedures set forth in paragraph (e)(1) of this clause may be modified in accordance with agency regulations implementing the Freedom of Information Act (5 U.S.C. 552) if necessary to respond to a request thereunder.

(3)Except to the extent the Governments action occurs as the result of final disposition of the matter by a court of competent jurisdiction, the Contractor is not precluded by paragraph (e) of the clause from bringing a claim, in accordance with the Disputes clause of this contract, that may arise as the result of the Government removing or ignoring authorized markings on data delivered under this contract.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN	Page 30 of 47 MOD/AMD
---------------------------	--	--

Name of Offeror or Contractor:

(f)Omitted or incorrect markings. (1)Data delivered to the Government without any restrictive markings shall be deemed to have been furnished with unlimited rights. The Government is not liable for the disclosure, use, or reproduction of such data.

(2)If the unmarked data has not been disclosed without restriction outside the Government, the Contractor may request, within 6 months (or a longer time approved by the Contracting Officer in writing for good cause shown) after delivery of the data, permission to have authorized notices placed on the data at the Contractors expense. The Contracting Officer may agree to do so if the Contractor-

(i)Identifies the data to which the omitted notice is to be applied;

(ii)Demonstrates that the omission of the notice was inadvertent;

(iii)Establishes that the proposed notice is authorized; and

(iv)Acknowledges that the Government has no liability for the disclosure, use, or reproduction of any data made prior to the addition of the notice or resulting from the omission of the notice.

(3)If data has been marked with an incorrect notice, the Contracting Officer may-

(i)Permit correction of the notice at the Contractors expense if the Contractor identifies the data and demonstrates that the correct notice is authorized; or

(ii)Correct any incorrect notices.

(g)Protection of limited rights data and restricted computer software. (1)The Contractor may withhold from delivery qualifying limited rights data or restricted computer software that are not data identified in paragraphs (b)(1)(i), (ii), and (iii) of this clause. As a condition to this withholding, the Contractor shall-

(i)Identify the data being withheld; and

(ii)Furnish form, fit, and function data instead.

(2)Limited rights data that are formatted as a computer database for delivery to the Government shall be treated as limited rights data and not restricted computer software.

(3)[Reserved]

(h)Subcontracting. The Contractor shall obtain from its subcontractors all data and rights therein necessary to fulfill the Contractors obligations to the Government under this contract. If a subcontractor refuses to accept terms affording the Government those rights, the Contractor shall promptly notify the Contracting Officer of the refusal and shall not proceed with the subcontract award without authorization in writing from the Contracting Officer.

(i)Relationship to patents or other rights. Nothing contained in this clause shall imply a license to the Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Government.

(End of clause)

I-70 52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS DEC/2014

The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

I-71 52.232-29 TERMS FOR FINANCING OF PURCHASES OF COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES NOV/2021

(a) Contractor entitlement to financing payments. The Contractor may request, and the Government shall pay, a contract financing payment as specified elsewhere in this contract when: the payment requested is properly due in accordance with this contract; the supplies deliverable or services due under the contract will be delivered or performed in accordance with the contract; and there has been no impairment or diminution of the Governments security under this contract.

(b) Special terms regarding termination for cause. If this contract is terminated for cause, the Contractor shall, on demand, repay to the Government the amount of unliquidated contract financing payments. The Government shall be liable for no payment except as provided by the Termination for Cause paragraph of the clause at Federal Acquisition Regulation (FAR) 52.212-4, Contract Terms and Conditions --

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 31 of 47
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Name of Offeror or Contractor:

Commercial Products and Commercial Services.

(c) Security for Government financing. In the event the Contractor fails to provide adequate security, as required in this contract, no financing payment shall be made under this contract. Upon receipt of adequate security, financing payments shall be made, including all previous payments to which the Contractor is entitled, in accordance with the terms of the provisions for contract financing. If at any time the Contracting Officer determines that the security provided by the Contractor is insufficient, the Contractor shall promptly provide such additional security as the Contracting Officer determines necessary. In the event the Contractor fails to provide such additional security, the Contracting Officer may collect or liquidate such security that has been provided and suspend further payments to the Contractor; and the Contractor shall repay to the Government the amount of unliquidated financing payments as the Contracting Officer at his sole discretion deems repayable.

(d) Reservation of rights.

(1) No payment or other action by the Government under this clause shall --

(i) Excuse the Contractor from performance of obligations under this contract; or

(ii) Constitute a waiver of any of the rights or remedies of the parties under the contract.

(2) The Governments rights and remedies under this clause --

(i) Shall not be exclusive, but rather shall be in addition to any other rights and remedies provided by law or this contract; and

(ii) Shall not be affected by delayed, partial, or omitted exercise of any right, remedy, power, or privilege, nor shall such exercise or any single exercise preclude or impair any further exercise under this clause or the exercise of any other right, power, or privilege of the Government.

(e) Content of Contractors request for financing payment. The Contractors request for financing payment shall contain the following:

(1) The name and address of the Contractor;

(2) The date of the request for financing payment;

(3) The contract number and/or other identifier of the contract or order under which the request is made; and

(4) An appropriately itemized and totaled statement of the financing (4) An appropriately itemized and totaled statement of the financing payments requested and such other information as is necessary for computation of the payment, prepared in accordance with the direction of the Contracting Officer.

(f) Limitation on frequency of financing payments. Contractor financing payments shall be provided no more frequently than monthly.

(g) Dates for payment. A payment under this clause is a contract financing payment and not subject to the interest penalty provisions of the Prompt Payment Act. The designated payment office will pay approved payment requests within 30 days of submittal of a proper request for payment.

(h) Conflict between terms of offeror and clause. In the event of any conflict between the terms proposed by the offeror in response to an invitation to propose financing terms (FAR 52.232-31) and the terms in this clause, the terms of this clause shall govern.

(End of Clause)

I-72

52.252-2

CLAUSES INCORPORATED BY REFERENCE (Feb 1998)

FEB/1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address:

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of Clause)

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 32 of 47
Name of Offeror or Contractor:		

Name of Offeror or Contractor:

SECTION J - LIST OF ATTACHMENTS

List of Addenda	Title	Date	Number of Pages	Transmitted By
Exhibit A	TECHNICAL REQUIREMENTS DOCUMENT	22-SEP-2025	043	DATA
Exhibit B	TECHNICAL DATA PACKAGE	22-JUL-2025	100	DATA
Exhibit C	SPI-AG00000621	19-AUG-2025	003	DATA
Attachment 0001	PRICING AND DELIVERY INFORMATION	24-FEB-2026	001	DATA

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN	Page 34 of 47 MOD/AMD
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Name of Offeror or Contractor:

SECTION K - REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF OFFERORS

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>
 For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the provision requires additional or unique information, then that information is provided immediately after the provision title.

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
K-1	52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP/2007
K-2	52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS--REPRESENTATION	JAN/2017
K-3	52.223-4	RECOVERED MATERIAL CERTIFICATION	MAY/2008
K-4	252.203-7005	REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (Sep 2022)	SEP/2022
K-5	252.204-7008	COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS	OCT/2016
K-6	252.225-7055	Representation Regarding Business Operations with the Maduro Regime	MAY/2022
K-7	52.222-18	CERTIFICATION REGARDING KNOWLEDGE OF CHILD LABOR FOR LISTED END PRODUCTS	FEB/2021

(a) Definition. Forced of indentured child labor means all work or service--

- (1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or
- (2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

(b) Listed end products. The following end product(s) being acquired under this solicitation is (are) included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, identified by their country of origin. There is a reasonable basis to believe that listed end products from the listed countries of origin may have been mined, produced, or manufactured by forced or indentured child labor.

Listed end product:	Listed countries of origin:
-1-	-2-

(c) Certification. The Government will not make award to an offeror unless the offeror, by checking the appropriate block, certifies to either paragraph (c)(1) or paragraph (c)(2) of this provision.

- [] (1) The offeror will not supply any end product listed in paragraph (b) of this provision that was mined, produced, or manufactured in a corresponding country as listed for that end product.
- [] (2) The offeror may supply an end product listed in paragraph (b) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that is has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture such end product. On the basis of those efforts, the offeror certifies that it is not award of any such use of child labor.

(End of provision)

K-8 252.204-7007 ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2025) OCT/2025
 Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN	Page 35 of 47 MOD/AMD
---------------------------	--	--

Name of Offeror or Contractor:

(b)(1) If the provision at FAR 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

- ☐ (i) Paragraph (e) applies.
- ☐ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

- (i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.
- (ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.
- (iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.
- (iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.
- (v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.
- (vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations and contracts when contract performance will be in Italy.
- (vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:

- ☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.
- ☐ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.
- ☐ (iii) 252.225-7020, Trade Agreements Certificate.
- ☐ Use with Alternate I.
- ☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.
- ☐ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.
- ☐ Use with Alternate I.
- ☐ Use with Alternate II.
- ☐ Use with Alternate III.
- ☐ Use with Alternate IV.
- ☐ Use with Alternate V.
- ☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

___ (vii) 252.232-7015, Performance-Based Payments--Representation.

(eThe Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov> . After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.2048(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
_____	_____	_____	_____
_____	_____	_____	_____

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

K-9

252.225-7059

PROHIBITION ON CERTAIN PROCUREMENTS FROM THE XINJIANG UYGHUR
AUTONOMOUS REGION-REPRESENTATION (JUN 2023)

JUN/2023

(a) Definitions. Forced labor and XUAR, as used in this provision, have the meaning given in the 252.225-7060, Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region, clause of this solicitation.

(b) Prohibition. DoD may not knowingly procure any products mined, produced, or manufactured wholly or in part by forced labor from XUAR or from an entity that has used labor from within or transferred from XUAR as part of any forced labor programs, as specified in paragraph (b) of the 252.225-7060, Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region, clause of this solicitation.

(c) Representation. By submission of its offer, the Offeror represents that it has made a good faith effort to determine that forced labor from XUAR will not be used in the performance of a contract resulting from this solicitation.

(End of provision)

K-10

52.207-4

ECONOMIC PURCHASE QUANTITY-SUPPLIES

AUG/1987

(a) Offerors are invited to state an opinion on whether the quantity(ies) of supplies on which bids, proposals or quotes are requested in this solicitation is (are) economically advantageous to the Government.

(b) Each offeror who believes that acquisitions in different quantities would be more advantageous is invited to recommend an economic purchase quantity. If different quantities are recommended, a total and a unit price must be quoted for applicable items. An economic purchase quantity is that quantity at which a significant price break occurs. If there are significant price breaks at different quantity points, this information is desired as well.

OFFEROR RECOMMENDATIONS

ITEM	QUANTITY	PRICE QUOTATION	TOTAL
_____	_____	_____	_____
_____	_____	_____	_____

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 37 of 47
---------------------------	---	----------------------

Name of Offeror or Contractor:

(c) The information requested in this provision is being solicited to avoid acquisitions in disadvantageous quantities and to assist the Government in developing a data base for future acquisitions of these items. However, the Government reserves the right to amend or cancel the solicitation and resolicit with respect to any individual item in the event quotations received and the Governments requirements indicate that different quantities should be acquired.

(End of Provision)

K-11 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS FEB/2026
(a) Definitions. As used in this provision

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror has does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in

- (A) The payment of a monetary fine or penalty of \$5,000 or more; or
- (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

CONTINUATION SHEET	Reference No. of Document Being Continued		Page 38 of 47
	PIIN/SIIN	MOD/AMD	

Name of Offeror or Contractor:

K-12 52.225-18 PLACE OF MANUFACTURE AUG/2018

(a) Definitions. As used in this provision--

"Manufactured end product" means any end product in product and service codes (PSCs) 1000-9999, except--

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

"Place of manufacture" means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

(b) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly

[] (1) In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

[] (2) Outside the United States.

(End of provision)

K-13 252.204-7017 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION MAY/2021

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. Covered defense telecommunications equipment or services, covered mission, critical technology, and substantial or essential component, as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation, that it "does" provide covered

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN	Page 39 of 47 MOD/AMD
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Name of Offeror or Contractor:

defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

K-14	252.239-7098	PROHIBITION ON CONTRACTING TO MAINTAIN OR ESTABLISH A COMPUTER NETWORK UNLESS SUCH NETWORK IS DESIGNED TO BLOCK ACCESS TO CERTAIN WEBSITES--REPRESENTATION (DEVIATION 2021-00003)	APR/2021
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(a) In accordance with section 8116 of Division C of the Consolidated Appropriations Act, 2021 (Pub. L. 116-260), or any other Act that extends to fiscal year 2021 funds the same prohibitions, none of the funds appropriated (or otherwise made available) by this or any other Act for DoD may be used to enter into a contract to maintain or establish a computer network unless such network is designed to block access to pornography websites. This prohibition does not limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities, or for any activity necessary for the national defense, including intelligence activities.

(b) Representation. By submission of its offer, the Offeror represents that it is not providing as part of its offer a proposal to maintain or establish a computer network unless such network is designed to block access to pornography websites.

(End of provision)

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

For FAR clauses: <https://www.acquisition.gov/>
For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>
If the provision requires additional or unique information, then that information is provided immediately after the provision title.

*** END OF NARRATIVE K0001 ***

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN	Page 40 of 47 MOD/AMD
---------------------------	--	--

Name of Offeror or Contractor:

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

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If the provision requires additional or unique information, then that information is provided immediately after the provision title.

	<u>Regulatory Cite</u>	<u>Title</u>	<u>Date</u>
L-1	52.204-7	SYSTEM FOR AWARD MANAGEMENT-REGISTRATION (FEB2026)	FEB/2026
L-2	52.212-1	INSTRUCTIONS TO OFFERORS--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (FEB 2026)	FEB/2026
L-3	252.204-7019	NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS	NOV/2023
L-4	252.215-7008	ONLY ONE OFFER (DEC 2022)	DEC/2022
L-5	252.215-7013	SUPPLIES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS (JAN 2023)	JAN/2023
L-6	52.233-2	SERVICE OF PROTEST (FEB2026)	FEB/2026

(a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.

(b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

L-7	52.252-1	SOLICITATION PROVISIONS INCORPORATED BY REFERENCE	FEB/1998
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This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

For FAR clauses: <https://www.acquisition.gov/>

For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of provision)

L-8	52.252-5	AUTHORIZED DEVIATIONS IN PROVISIONS	NOV/2020
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(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DoD FAR SUPPLEMENT (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

L-9	252.239-7017	NOTICE OF SUPPLY CHAIN RISK (DEVIATION 2018-00020)	SEP/2018
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(a) Definition. As used in this provision--

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN	Page 41 of 47 MOD/AMD
Name of Offeror or Contractor:		

"Supply chain risk," means the risk that an adversary may sabotage, maliciously introduce unwanted function, or otherwise subvert the design, integrity, manufacturing, production, distribution, installation, operation, or maintenance of a covered system so as to surveil, deny, disrupt, or otherwise degrade the function, use, or operation of such system (see 10 U.S.C. 2339a).

(b) In order to manage supply chain risk, the Government may use the authorities provided by 10 U.S.C. 2339a. In exercising these authorities, the Government may consider information, public and non-public, including all-source intelligence, relating to an offeror and its supply chain.

(c) If the Government exercises the authority provided in 10 U.S.C. 2339a to limit disclosure of information, no action undertaken by the Government under such authority shall be subject to review in a bid protest before the Government Accountability Office or in any Federal court.

(End of provision)

Instructions to Offerors:

Proposals will be evaluated in accordance with the FAR 15.101-2 Lowest Price Technically Acceptable source selection process. Proposals must be submitted and uploaded through the Procurement Integrated Enterprise Environment (PIEE) Solicitation Module. Proposals must have a validity date of 180 days after close of the solicitation. To be considered for award an offeror must meet or exceed technical standards for the following non-price factors: 1) Supplies-Terms and Conditions, 2) Delivery, and 3) Past Performance.

Offerors should thoroughly read and understand the terms and conditions contained in the solicitation. Offerors should ensure that the information contained in their proposal is factual, accurate, and complete. Prior to the closing date and time, offerors shall submit a signed filled-in solicitation, filled-in attachments, a cost/price proposal, and any other supporting documentation. Failure to provide any information requested in the solicitation, or failure to submit on time, may render an offeror's proposal technically unacceptable and preclude it from any further consideration for contract award.

In the event any portion of the proposal is written by anyone who is not a bona fide employee of the firm submitting the proposal, the Offeror shall identify the person's firm, the relationship of that firm to the Offeror, and the portion of the technical proposal the person wrote.

A. TECHNICAL ACCEPTABILITY EVALUATION

Prior to being evaluated on price, all Offerors will be evaluated on the following non-cost factors:

i. Supplies - Terms and Conditions:

To meet the minimum requirements of the solicitation, the offeror must clearly show within their submitted proposals that they will be able to meet the Government's product requirements, specifications, quality assurance requirements, program management requirements, delivery requirements, and all other requirements identified in the Technical Requirements and Technical Data Package of the solicitation.

i i. Past Performance

The Offeror should provide past performance information for consideration in evaluating past performance:

a. A list of contracts, commercial or Government, performed within the past six years from date of solicitation close, limited to no more than three (3) Government and three (3) commercial contracts for the same or similar items. For this Solicitation, same or similar items are defined as items in the same Federal Supply Class. The Offeror shall provide the company/Government agency with a point of contact (POC), address, telephone number, an average dollar amount of the contract per annum, the period of performance, and a sample listing of items provided for under the contracts. The Government reserves the right to limit the number of references it decides to contact.

b. A listing of any problems or discrepancies (including shortages, overages, damages, defects, or late shipments, etc.) experienced within the past six years from date of Solicitation close for the contracts or customers reported in the paragraph above. Include a brief description of how these problems were addressed and remedied.

c. Additional sources of performance data shall also be used for past performance evaluation. These sources include, but are not limited to the Supplier Performance Risk System (SPRS), Federal Awardee Performance and Integrity Information System (FAPIS), Electronic Subcontract Reporting System eSRS, Contractor Performance Assessment Rating System (CPARS), Dunn & Bradstreet, interviews with Program Managers, Contracting Officers and Fee Determining Officials, and the Defense Contract Management Agency.

i i i. Delivery Schedule

The Government required delivery is stated in the Deliveries or Performance section of the Solicitation. The Offeror shall confirm

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 42 of 47
---------------------------	---	----------------------

Name of Offeror or Contractor:

acceptance of the Government required delivery schedule or propose an alternate delivery schedule in section Deliveries or Performance of the Solicitation. A proposed alternate delivery schedule that exceeds the Governments required delivery schedule does not eliminate an Offeror from consideration. This verbiage takes precedence over verbiage in FAR 52.211-8.

B. Price
Prices offered must be unit prices, which are clearly stated and which require no further interpretation by the Government in order to determine the actual offered price for each item number. Prices must not be stated as part of a pricing formula or as charges per lot. Unit prices offered must include costs of compliance with all solicitation requirements. Prices must be offered for each quantity increment and ordering year. Failure to submit proposed prices in accordance with these instructions may result in rejection of the offer.

*** END OF NARRATIVE L0001 ***

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN	Page 43 of 47 MOD/AMD
Name of Offeror or Contractor:		

SECTION M - EVALUATION FACTORS FOR AWARD

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

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If the provision requires additional or unique information, then that information is provided immediately after the provision title.

EVALUATION FACTORS FOR AWARD

This document incorporates one or more provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a provision may be accessed electronically at these addresses:

For FAR clauses: HYPERLINK "https://www.acquisition.gov/"https://www.acquisition.gov/
 For DFARS clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

If the provision requires additional or unique information, then that information is provided immediately after the provision title.

The Government will award one or more contracts resulting from this Solicitation. The award(s) will be made based on the Lowest Price Technically Acceptable (LPTA) if more than one offer is received for this solicitation. To be considered for award, an offeror must meet or exceed the technical acceptability standards for the following non-price factors: 1) Technical, 2) Past Performance, and 3) Delivery Schedule.

To be considered awardable, there must be an acceptable rating in every non-price factor/subfactor.

Non-Cost Evaluation Factors and Sub-Factors Structure:

1. Supplies - Terms and Conditions:

The purpose of the technical factor is to assess whether the offeror's proposal will satisfy the Government's minimum requirements. The aspects affecting an offeror's ability to meet the solicitation requirements are as follows:

a. Adequacy of Response: The requirements have been considered, defined, and satisfied, and the proposal demonstrates a clear understanding of the technical features. The Offeror clearly substantiates its technical capabilities to identify potential technical problems and proposed resolutions to fully meet all technical requirements and performance specifications.

The Government will evaluate the offeror's proposal against these requirements to determine whether the proposal is acceptable or unacceptable.

Adjective Rating: Description

Acceptable: Proposal meets the requirements of the Solicitation.
 Unacceptable: Proposal does not meet the requirements of the Solicitation.

2. Past Performance:

The past performance evaluation is an assessment of the Offeror's probability of meeting the minimum past performance solicitation requirements. This assessment is based on the Offerors record of relevant and recent past performance information that pertain to the products and/or services outlined in the solicitation requirements. Recent performance is defined as six years from the Solicitation close date. In the case of an Offeror without a record of relevant past performance for or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the Offeror may not be evaluated favorably or unfavorably on past performance. Therefore, the Offeror shall be determined to have unknown (or neutral) past performance. In the context of acceptability/unacceptability, a neutral rating shall be considered acceptable.

Adjective Rating: Description

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 44 of 47
--	---	--

Name of Offeror or Contractor:

Acceptable: Based on the Offeror's performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort, or the Offeror's performance record is unknown.

Unacceptable: Based on the Offeror's performance record, the Government does not have a reasonable expectation that the Offeror will be able to successfully perform the required effort.

3. Delivery Schedule:

The Government's Delivery Schedule is listed in Section F of the Solicitation. Offerors are to provide their own delivery schedule or accept the Governments proposed schedule.

It is the Government's intent to evaluate the proposed Delivery Schedule to ensure timely delivery. The Offeror must describe how the delivery schedule will be achieved. Proposals being evaluated against the proposed delivery schedule will receive a rating of acceptable or unacceptable.

Adjective Rating: Description

Acceptable: The Offeror's proposed delivery schedule with accompanying narrative meets the Government's required delivery schedule AND the time proposed for FAT meets the Government proposed timeline. The narrative explains in sufficient detail how the delivery schedule will be achieved and capability to adapt to unexpected surges in requirements.

If the delivery times proposed by the Offeror are longer than the Government required, the Offeror shall submit an explanation for why the Government required delivery cannot be met in order for the Offeror's proposed delivery to be deemed Acceptable or Unacceptable.

Unacceptable: The Offerors proposed delivery schedule with accompanying narrative is significantly worse than the required delivery schedule AND/OR the time proposed for FAT is significantly worse than the Government proposed timeline. The narrative contains very little detail on how the delivery schedule will be achieved and capability to adapt to unexpected surges in requirements.

Price Factor

This Solicitation is for Firm-Fixed-Price Definite Quantity Contract. The Offeror's pricing will be evaluated using accepted price analysis methods. The pricing analysis will be performed on a comparative basis.
The cost for any separately priced line items will be added to the Offerors total production price to arrive at the total price.

*** END OF NARRATIVE M0001 ***

M.1. The Government will weigh the relative benefits of each proposal and award will be made based on an assessment of the results of the evaluation. In making this assessment, the Government will give due consideration to all the factors and subfactors and their relative order of importance. All non-cost evaluation factors, when combined, are approximately equal to cost or price. The Government reserves the right to make an award to other than the lowest priced offeror, or to other than the offeror with the highest technical rating if the Government determines that to do so would result in the best value to the Government. Offerors that receive a final rating of Red/Unacceptable at any factor/subfactor level are ineligible for award. Non-cost evaluation factors and subfactors for tradeoff are listed below in descending order of importance.

M.2.1.1. Adequacy of Response: The extent to which the technical requirements have been considered and satisfied, and the proposal demonstrates a clear understanding of the technical features. The Government will evaluate how well the proposal meets the Government's requirements of the solicitation; specifically, the Government's requirements in Section B, quality assurance requirements in Section E, and all requirements identified in the Technical Requirements Document (TRD) in Section J (Exhibit A) of this solicitation.

M.2.1.2. Technical Performance: The offeror shall clearly indicate that they intend to fully meet all minimum technical requirements set forth in the applicable TRD and Performance Specification contained in the TRD.

M.2.1.2.1. Production Plan: The offeror's plan for production shall utilize accepted industrial engineering techniques and practices and shall include the following at a minimum:

M.2.1.2.1.1. A process flow chart depicting, in sequence, all fabrication, assembly, inspection/test, transportation and storage operations required in the manufacture of the equipment. The chart should differentiate between in-house and outside operations and estimate the time required to perform each operation.

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN	Page 45 of 47 MOD/AMD
---------------------------	--	--

Name of Offeror or Contractor:

M.2.1.2.1.1.1. A major event milestone chart depicting all events from award of the contract until completion, which is deemed by the offeror as significant to the successful accomplishment of the terms of the contract. The milestone chart should depict all events for successful build and test of the parts with and without First Article Testing (FAT).

M.2.1.2.1.1.3. The offeror must identify critical non-standard/sole source parts, complex subassemblies, and materials with long lead times and show firm commitment from their sources to allow for timely delivery to meet the required delivery schedule. The Government will evaluate the adequacy of the offeror's manufacturing capabilities and how it will lower overall program risk and cost to meet the requirements of the solicitation. Initiatives to minimize quality problems and to reduce the cost will also be evaluated.

M.2.1.2.2. The proposal will be evaluated to determine if there is a clear understanding of the Mast Group, Hydraulic-Pneumatic (or equipment similar in design complexity) operational requirements, technology, reliability requirements, manufacturing requirements, defined in the appropriate sections of the TRD. Any risk or problem areas associated with this requirement shall be discussed in detail. The offeror shall outline any major problems anticipated in meeting the requirement and shall describe how these problems will be resolved.

M.2.1.2.2.1. Operational Failure: The offeror shall describe in detail their ability to detect, isolate, analyze, and resolve any associated equipment failures due to problems encountered with aircraft including environmental, stress, electromagnetic interference (EMI), and other fault failures.

M.2.1.2.2.2. Diminishing Sources/Part Obsolescence: The offeror shall describe diminishing sources/part obsolescence capability related to identifying, replacing, and modernizing components and parts. The offeror shall identify potential parts/technology obsolescence problems and/or diminishing sources problems related to current design. The offeror will also describe the plan for forecasting diminishing sources and for notifying the contracting activity in accordance with the "Diminishing Manufacturing Sources and Material Shortages (DMSMS) Management Plan" Contract Data Requirement List (CDRL).

M.2.1.3. Management: The offeror shall provide milestones such as: FAT dates, fabrication dates, placement of material orders, receipt of materials, fabrication and acceptance testing, start and completion of production engineering, and initial hardware delivery schedule.

M.2.1.3.1. The offeror shall identify potential contingency plans to handle material changes due to parts obsolescence or specification changes due to urgent requirements and how these changes will be integrated into the production line without affecting the delivery schedule.

M.2.1.3.2. Testing Capabilities: The offeror shall demonstrate through their proposal submission that they understand the scope and the resources required for the production testing requirements as detailed within the specification.

M.2.1.3.2.1. FAT: The offeror shall demonstrate through their proposal submission that they have the capabilities to perform the FAT requirements as detailed within the specification and TRD.

M.2.2. Initial Risk Assessment Subfactor: The Government will assess the completeness of the details provided and adequacy of the proposed initial risk assessment that includes technical, schedule, cost risks, the process for incorporating potential risk-driven impacts into the proposal price and schedule, and the risk assessment (identification and analysis) methodology.

M.2.3.3. Definitions used in evaluating factors and subfactor responses to determine the overall factor or subfactor rating as defined in FAR 15.001 and Defense Procurement and Acquisition Policy memorandum dated August 20, 2022, "Department of Defense Source Selection Procedures":
 Deficiency is a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level. See FAR 15.001.
 Strength is an aspect of an offeror's proposal that has merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.
 Significant Weakness in the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance.
 Weakness means a flaw in the proposal that increases the risk of unsuccessful contract performance.
 Significant Strength is an aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

M.3. Past Performance Factor

M.3.1. The past performance evaluation results in an assessment of the offeror's probability of meeting the solicitation requirements. The standard list of systems (CPARS, SPRS, FAPIIS, etc.) may be used to evaluate performance. The past performance evaluation considers each offeror's demonstrated recent and relevant record of performance in supplying products that meet the contract's requirements. In accordance with FAR 15.305(a)(2), the currency and relevance of the information, source of the information, context of the data, and general trends in contractor's performance shall be considered. These are combined to establish one performance confidence assessment rating for each offeror.

M.3.2. There are three aspects to the past performance evaluation: recency, relevancy (including context of data), and quality

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 46 of 47
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Name of Offeror or Contractor:

(including general trends in contractor performance and source of information). The first aspect is to evaluate the recency of the offeror's past performance. The second aspect is to determine how relevant a recent effort accomplished by the offeror is to the effort to be acquired through the source selection. The third aspect is to establish the overall quality of the offeror's past performance (see FAR 15.304(c)(2)).

M.3.2.1. Past Performance Recency

Recency is generally expressed as a time period during which past performance references are considered relevant and is critical to establishing the relevancy of past performance information. For purposes of past performance, "recent" is defined as contract/orders completed within the last three (3) years from the solicitation close date.

M.3.2.2. Past Performance Relevancy

In establishing what is relevant for the acquisition, consideration will be given to those aspects of an offeror's history of contract performance that would provide the most context and give the greatest ability to measure whether the offeror will successfully satisfy the current requirement. The aspects of relevancy that the Government will consider for this acquisition are the similarity of product, complexity, dollar value, and contract type. As instructed in Section L of this solicitation, all offerors shall provide a list of up to three (3) contracts/orders, commercial or Government, for the same or similar items, completed within the last three (3) years from the solicitation close date. "Same" items are those exact items identified in Section B. "Similar" items include items in the same Federal Supply Class (FSC) as those items identified in Section B (Attachment 0001).

M.3.2.2.1. The Government reserves the right to limit the number of references it decides to contact.

M.3.2.2.2. Proposals will receive one of the following ratings for Relevancy:

M.3.2.2.3. Past Performance Relevancy Ratings

Adjectival Rating / Description

Very Relevant: Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.

Relevant: Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.

Somewhat Relevant: Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.

Not Relevant: Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

M.3.2.3. Past Performance Quality

The Past Performance Evaluation Team will review all past performance information collected and determine the quality of the offeror's performance, general trends, and usefulness of the information and incorporate these into the performance confidence assessment. A separate quality assessment rating is not required; rather, the past performance confidence assessment rating is based on the offeror's overall record of recency, relevancy, and quality of performance. The government may also review other sources of past performance information, such as CPARS, SPRS, SAM.gov, VPH or any other source of past performance information to assists in determining past performance quality.

M.4. Delivery Schedule Factor

M.4.1. The Government's delivery schedule is listed in Section F and Attachment 0001. Offerors are to provide their proposed delivery schedule or accept the Government's required delivery schedule.

M.4.2. It is the Government's intent to evaluate the proposed delivery to ensure timely delivery. Offerors are encouraged to submit their optimal delivery schedule. The Government may elect to consider for award only those proposals which comply with the required delivery schedule but reserves the right to consider proposals which exceed the required delivery schedule. Offerors may provide a narrative explaining the rationale for their proposed schedule, if it differs from the Government requirement. Proposals being evaluated against the proposed delivery schedule will receive one of the following ratings:

Outstanding: (1) The offeror's proposed delivery schedule with accompanying narrative is significantly better than the required delivery schedule AND (2) the time proposed for FAT is significantly better than the Government proposed timeline. If provided, the narrative explain in sufficient detail how the delivery schedule will be achieved.

Good: (1) The offeror's proposed delivery schedule with accompanying narrative is moderately better than the required delivery schedule AND (2) the time proposed for FAT is moderately better than OR meets the Government proposed timeline. If provided, the narrative explain in sufficient detail how the delivery schedule will be achieved.

Acceptable: (1) The proposed delivery schedule with accompanying narrative meets the Government's required delivery schedule AND (2) the time proposed for FAT meets the Government proposed timeline. If provided, the narrative explains in sufficient detail how the delivery schedule will be achieved.

Marginal: (1) The offeror's proposed delivery schedule with accompanying narrative does not meet the Government's required delivery schedule AND/OR (2) the time proposed for FAT does not meet the Government proposed timeline. If provided, the narrative lacks sufficient detail on how the delivery schedule will be achieved.

Unacceptable: (1) The offeror's proposed delivery schedule with accompanying narrative is significantly worse than the required delivery

CONTINUATION SHEET	Reference No. of Document Being Continued SPRBL1-26-R-0007 PIIN/SIIN MOD/AMD	Page 47 of 47
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Name of Offeror or Contractor:

schedule AND/OR (2) the time proposed for FAT is significantly worse than the Government proposed timeline. If provided, the narrative contains very little detail on how the delivery schedule will be achieved.

M.5. Price Factor
For evaluation purposes, the offeror's pricing will be evaluated utilizing accepted price analysis methods. The pricing analysis will be performed on a comparative basis. For purposes of this evaluation factor, the Government will consider the offeror's total evaluation price, which consists of the sum of the total evaluated production price and the total extended price for all the separately priced contract line-item numbers (CLINs) titled "First Article Quantity" in Section B of the solicitation. Pricing for each production quantity range for each year will be evaluated by applying a weighted factor of 30% to the first quantity range, 40% to the second quantity range, and 30% to the third quantity range, to arrive at an average weighted unit price. This average weighted unit price will then be multiplied by the estimated annual quantity to arrive at an evaluated price for each production year. The evaluated prices for each production year will be summed together to arrive at the total evaluated production price for each item. This price will be the total evaluated price for purposes of this evaluation for each item.

*** END OF NARRATIVE M0002 ***